Lauren

From: Jeremy Saland <jsaland@salandlaw.com>
Sent: Thursday, May 15, 2025 10:56 AM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
<[redacted]>; [redacted]
Subject: Hearing Panel

Lauren,

Though I request that this be done anonymously not to adversely impact [redacted], I have been watching the advisors and pinned them throughout the hearing at various times. I have done this every day. I kindly ask you to watch Savannah Bao for some time and then ask Meaghan to remind the entire panel not do other things during the hearing. Instead, they must solely pay attention to the hearing. As you know, these young men's lives in terms of their academic future and integrity are on the line. Ms. Bao, and the entirety of the panel, owes it to them to be attentive and to dedicate her time solely to the hearing. Failure to do so is a gross deviation from and a violation of the process. It is one thing to ignore a hair follicle test scientifically proving [redacted]. didn't do ketamine off the complainant at all and the complainant's own admission she can't identify [redacted] nor knows who actually saw her intentionally naked based on her own observations and memory, but the Hearing Panel must be attentive and listen. Please watch her eyes, examine the reflection in her glasses, watch her head movement, and watch her shoulders. After Meaghan reminds the Hearing Panel of their duty and responsibility, please continue to watch Ms. Bao to see how she continues. Thank you.

Sincerely,

Jeremy Saland, Esq.

Saland Law PC

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From: Jeremy Saland
To: Lauren Branchini
Cc: Title IX Coordinator; [redacted] [redacted]
Subject: RE: Savannah Bao
Date: Thursday, May 15, 2025 3:16:23 PM

Lauren,

I would note that Ms. Bao has removed her glasses. Consciousness of guilt? I assume she was told that we saw the reflection in her glasses. That's a far more reasonable and rational assumption than the ones that have be held as truth in this proceeding.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
Sent: Thursday, May 15, 2025 2:47 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
[redacted]
Subject: RE: Savannah Bao

Lauren,

Honesty, integrity, ethics, and non-bias be damned. Maintaining a schedule to find Respondents responsible is more important to Cornell than a fair and just process. The Brooklyn DA's Office must have taught different ethics classes than the ones I took as a Manhattan prosecutor and throughout

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my career. Shame on Cornell. I certainly hope none of you, from the General Counsel to anyone on that panel, is wrongfully accused of wrongdoing or has a child wrongfully accused, and has an adjudicator so cavalier and flippant towards the rule of law.

Yes, I will proceed to questioning of [redacted] with my objection. Yes, you can save this for the appeal too. Hopefully, they won't be driving cars as they read it.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
Sent: Thursday, May 15, 2025 2:30 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]>; [redacted]
Subject: RE: Savannah Bao

Lauren,

I recognize there are a flurry of emails. However, that is due to the exigency of the matter, and I did not receive a response. It is also indicative of me being unable to fully be present in the fact finding as I protect [redacted] rights and future. As to the request for preservation, the latter request far exceeds the original. I never thought I would have to preserve login and IP information for someone driving a car as they were engaged as a Hearing Panel member.

Sincerely,

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Jeremy Saland, Esq.

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From: Lauren Branchini <lb659@cornell.edu>
Sent: Thursday, May 15, 2025 2:27 PM
To: Jeremy Saland <jsaland@salandlaw.com>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
Subject: Re: Savannah Bao

Dear Jeremy,

I am in receipt of your nine emails about this matter (received from 1:41pm to 2:15pm); they will be made part of the Hearing Record.

As stated in my April 28, 2025, email; I have made our Office of General Counsel aware of your litigation preservation request.

Best,
Lauren

From: Jeremy Saland <jsaland@salandlaw.com>
Sent: Thursday, May 15, 2025 2:15 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]

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[redacted]>; [redacted]

Subject: RE: Savannah Bao

Lauren,

I assume the "technical issue" is to discuss how to proceed. I am demanding that the matter be adjourned. I have been unable to follow as closely as I should. Similarly, neither have [redacted] and [redacted] should not be forced to proceed with a distracted and driving Hearing Panel member. That is not just and undoubtedly a violation of Title IX, Cornell's policy and expectations it puts on itself, and [redacted] and the other respondents' rights. Their futures are on the line. This is not OK.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
Sent: Thursday, May 15, 2025 2:11 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]>;
[redacted]
Subject: RE: Savannah Bao

Lauren,

I kindly ask that you adjourn for the day. I have been distracted and unquestionably, so has Ms. Bao. She needs to be in front of a computer. Not driving. Thank you.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
Sent: Thursday, May 15, 2025 2:00 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
Subject: RE: Savannah Bao

Lauren,

As Ms. Bao hopefully pays attention to the road and is not distracted or at least driving with a hands free device, please ensure Cornell preserves IP login information from all parties in the zoom proceeding. Thank you.

Sincerely,

Jeremy Saland, Esq.

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reply email and destroy all copies of this message in your possession, custody or control. This email does not create an attorney client relationship.

From: Jeremy Saland
Sent: Thursday, May 15, 2025 1:53 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
Subject: RE: Savannah Bao

We cannot do our job for [redacted] as his advisors. I do not want to raise my hand to disclose that [redacted] and I are observing this and risking bias or prejudice.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
Sent: Thursday, May 15, 2025 1:51 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
[redacted]
Subject: RE: Savannah Bao

Please stop the hearing. Ms. Bao is driving a car. She needs to be paying attention to the road for her own safety but to respondents for their life and future. Cornell owes at least that. We need to wait for her return. Please top the hearing.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
Sent: Thursday, May 15, 2025 1:49 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted];
[redacted]
Subject: RE: Savannah Bao

Lauren,

It appears Ms. Bao may be in a car. There are shadows moving across her face and her body is moving in a manner different than previously. She has a seatbelt on.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
Sent: Thursday, May 15, 2025 1:47 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
Subject: RE: Savannah Bao

Lauren,

Just to preserve the record, Ms. Bao's background has now changed.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
Sent: Thursday, May 15, 2025 1:45 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
Subject: RE: Savannah Bao

Lauren,

I appreciate Meaghan's efforts to protect the hearing process and panel that people are looking at multiple screens and taking notes, I ask you still to preserve the below as it may be needed for an appeal within the Title IX process or in a more formal legal proceeding. Thank you.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
Sent: Thursday, May 15, 2025 1:41 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
Subject: RE: Savannah Bao

Lauren,

Thank you. Can you please preserve any and all records as to Ms. Bao's access and use of her email or any data, files, etc., of Cornell? I presume it is already preserved. Similarly, if there is login information and tracking of any sort when an administrator is using any of Cornell's systems? For example, if she has been on her email and drafting or sending emails, that is something we want to know if needed for an appeal. I am confident Cornell tracks administrators and staff when they use a password, access student or other files, etc., and her emails and use of the same would be preserved as well. To this bigger point, Ms. Bao has not asked one question. While that in and of itself can mean many things, its consistent with not being fully engaged and involved when her fellow panel members are making many thoughtful inquiries. Thank you again.

Sincerely,

Jeremy Saland, Esq.

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From: Lauren Branchini <lb659@cornell.edu>
Sent: Thursday, May 15, 2025 12:08 PM
To: Jeremy Saland <jsaland@salandlaw.com>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]
Subject: Re: Savannah Bao

Dear Jeremy,

Thank you for your email; it will be included in the Hearing Record.

Best,

Lauren

From: Jeremy Saland <jsaland@salandlaw.com>
Sent: Thursday, May 15, 2025 11:27 AM
To: Lauren Branchini <lb659@cornell.edu>
Cc: Title IX Coordinator <titleix@cornell.edu>; [redacted]

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Subject: Savannah Bao

Lauren,

As an advisor, I should be able to pay full attention to the hearing, but find myself watching Ms. Bao. Moments ago, her glasses clearly reflected a blue box with a white background on her screen as her head and eyes moved back and forth and possibly hear hands via her shoulders. Pinned in the zoom was the fully white house layout with black borders. Unquestionably, Ms. Bao was not on the zoom. I wanted to share this in real time before going back to the hearing. Thank you.

Sincerely,

Jeremy Saland, Esq.

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From: Lauren Branchini
To: Jeremy Saland
Cc: [redacted]; [redacted] Title IX Coordinator
Subject: Re: [redacted] Dismissal Request
Date: Friday, May 16, 2025 1:01:05 PM

Dear Jeremy,

Thank you for your email; it will be made part of the Hearing Record. Your request for a new hearing has been forwarded to the Hearing Chair for her review.

Best,
Lauren

From: Jeremy Saland <jsaland@salandlaw.com>
Sent: Friday, May 16, 2025 10:47 AM
To: Lauren Branchini <lb659@cornell.edu>
Cc: [redacted]>; [redacted]
Title IX Coordinator <titleix@cornell.edu>
Subject: [redacted] Dismissal Request

Lauren,

As you are aware, Savannah Bao has not adhered to her responsibilities as a Hearing Panel member in [redacted] ongoing Title IX case. In sum and substance, Ms. Bao has repeatedly demonstrated that she is engaged in other work during hearing sessions. In fact, not only was she doing other work and addressing other matters during the proceedings, whether writing emails or something else, as is clear from the background change on what appeared to be her iPhone from what was previously a computer, the moving shadows on her face, and seatbelt over her shoulder, Ms. Bao was driving a vehicle during approximately 45 minutes of [redacted] testimony. As I explained, I had been watching Ms. Bao. Simply, one cannot drive safely and pay attention to live testimony, at least not safely and genuinely paying attention. An audio book a Title IX hearing is not!

Though I appreciated Hearing Chair Meaghan Borys' "technical issue" comment and her prior statement that the Hearing Panel's actions (really, Ms. Bao's) of looking at other things and typing was indicative of their work on the case, we both know that both statements were untruths, to put it kindly. No matter what Ms. Borys' vocalized, I made it clear that I was unable to provide my full attention to the testimony, nor could my fellow advisor or our advisee, because we had been watching Ms. Bao and attempting to confirm our fears. As such, I requested and demanded that the hearing be adjourned for the day. As expected, despite discussing this with Cornell's General Counsel, or at least sharing my emails, you denied my very reasonable ask. No matter who ultimately made the decision, and no matter how willful Cornell's continued disregard for the rule of law, honesty, integrity, and any ethical consideration to an accused – especially in light of the demonstrable evidence or lack of evidence confirming [redacted] nnocence, aka, non-responsibility, it is incredibly galling and frightening. I cannot help but wonder whether this misconduct and disregard is

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common at your esteemed and respected Ivy League institution and whether the same warrants greater investigation.

Separately, I have been building a record of the questions from Ms. Borys' requiring the parties to speculate and the denials by Ms. Borys' when advisors ask the same questions. It is both improper and inconsistent and violates the Title IX process as well.

In closing, I kindly ask that as part of my preservation request that you also maintain all training records and communications with each of the Hearing Panel members prior to and during [redacted] hearing. Further, please accept this email as a request for a new Hearing Panel and for the hearing to restart. My continued engagement should not be construed as a waiver of this appellate issue. Simply, you have left [redacted] no option.

No matter your decision, please ask your General Counsel and the Title IX Office to do better. It's really not a heavy lift. Thank you.

Sincerely,

Jeremy Saland, Esq.

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From: Jeremy Saland
To: Title IX Coordinator; [redacted]
Cc: Lauren Branchini; [redacted] Donica Thomas Varner
Subject: RE: (94428) Hearing Chair Communication - Hearing Request
Date: Tuesday, May 20, 2025 7:54:48 AM

Lauren,

It brings me no pleasure to share the following, but I am speaking with ethics counsel to ascertain my responsibility and duty to report Cornell's misconduct to the Department of Education and proper authorities, and your knowing misrepresentations and handling of this Title IX investigation and hearing to the Grievance Committee. The issues is not whether I agree with your decisions, even if you wrongfully refused to dismiss this action against [redacted] for snorting ketamine off the complainant's body and seeing her intentionally naked when the evidence in light most favorable to the complainant demonstrated that [redacted] had no ketamine in his system based on a hair follicle test, nobody saw him ingest ketamine including the complainant, and no party, including the witnesses, saw him observe the complainant naked. Instead, it is about the integrity of the process and knowing disregard of the same. Setting aside your clear effort to facilitate either a finding of responsibility against [redacted] or to placate a complainant who very well may have been victimized by others by keeping [redacted] in this hearing, your below email is the proverbial "icing on the cake".

To knowingly and falsely state that you did not observe what I wrote to you regarding Ms. Bao not paying attention is absolutely and unequivocally a lie or, alternatively, and I do not believe this to be the case, you did not watch anything at all. I do not know which would be worse, but I have to believe you did your due diligence and chose to cover up the misconduct because you believe that the Hearing Panel may do what you lacked the courage to do – find [redacted] not responsible, thereby avoiding these issues on appeal, in an Article 78, or an action against Cornell in a lawsuit. Sadly, for Cornell, whether [redacted] is responsible or not, the esteemed Ivy League university's failings will not be ignored. No student should be subject to such a lack of professionalism. After all, Cornell should be setting the bar, not lowering it in a sinister game of limbo.

Even if you did not watch it in real time, you must have watched the recording after the fact. If you didn't do so after my complaint, that is incredibly problematic as well. Whatever you did or did not do, it is quite rich that you neglected to reference in your reply to the parties anything about Ms. Bao driving a car. Heck, she was wearing a seatbelt! How is it that you failed to mention this in your email to the parties and fail to see the seatbelt, among other things, over Ms. Bao's shoulder? For that matter, simply accepting as true Ms. Bao's statement that she was actively paying attention to the proceedings is laughably amateur and intellectually dishonest. Otherwise, let's just accept all the respondents' statements as true! Case closed!

Looking objectively at the evidence, one cannot drive a car, and both watch and pay attention to a proceeding at the same time. As I noted, putting safety aside, [redacted] life and that of the other parties is not some audio book! Oh, lest we forget, I assume we can both agree that upon her return, Ms. Bao was sans her glasses. Yes, the same Ms. Bao that you asserted was "actively paying attention" and

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reviewing materials, among other things, removed her glasses (because she didn't want me to catch her doing other things in the reflection!). Now, don't just put on your Cornell "hat" of pushing a hearing forward for expediency purposes, protect a complainant, and running roughshod of students' rights simply because you can. Instead, put on the hat you presumably wore as a Brooklyn prosecutor and honestly assess the evidence with the sole agenda of justice on your mind: If Ms. Bao was no longer wearing her glasses that she needed for every day of the proceeding to review said evidence and type her copious notes, and to drive her car too(!!), how was she able to continue "actively paying attention" to that same if she couldn't see her notes, or the road (!!), without said glasses?!? Shall I give you the answer or do you already know it?!

Lauren, doing Cornell's bidding, seeking out a predetermined result, and blatantly, knowingly, and intentionally misrepresenting what you observed and what Ms. Bao's conduct means to the integrity of the process says much about you as an attorney and your bias and capabilities as a Title IX Coordinator as it does about Cornell as an institution. At this point, there is no real remedy, and it is inconceivable [redacted] is not prejudiced going forward with you at the helm and Ms. Bory's as Hearing Chair no matter whether it is this Hearing Panel or another. I certainly pray and hope that neither you nor anyone from the General Counsel's Office finds yourself or a loved one accused of something you did not commit, or, even if you did violate some law, where those in power trample your rights, ignore your pleas, and show disdain for a process put in place to protect you from the same abuse they are doling out.

As I noted in one of my earlier emails, whether by the hand or word of President Donald Trump or Cornell University, appearing to do what is right when you know that it is not, is always wrong. Do better. Shame on you all.

Sincerely,

Jeremy Saland, Esq.

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From: Title IX Coordinator <titleix@cornell.edu>
Sent: Monday, May 19, 2025 4:34 PM
To: [redacted]
Cc: Title IX Coordinator <titleix@cornell.edu>; Lauren Branchini <lb659@cornell.edu>; Jeremy Saland <jsaland@salandlaw.com>; [redacted]
Subject: (94428) Hearing Chair Communication - Hearing Request

Dear [redacted]

This email has been sent to all parties. Please see below a communication from the Hearing Chair.

Hearing Chair Communication, May 19, 2025, Case no. (94428):

On May 15, 2025, the Office for Institutional Equity and Title IX (OIETIX) received a message expressing concern that Hearing Panel members were not paying sufficient attention to testimony at the hearing. This message was conveyed to me contemporaneously. Although the relayed observations were not shared by me personally, I nonetheless spoke directly to the Hearing Panel members during the very next break about that concern. Each Panel member specifically relayed that they have been actively paying attention to all aspects of the hearing, which has included their taking notes, reviewing materials in the evidentiary record, and preparing their own questions for the parties, as they saw fit. Such conduct necessarily included their, e.g., looking away from camera, noticeably reading documents while on screen, and typing or otherwise writing during testimony. After that break, I communicated the same to all hearing participants.

Later that same day, a second concern was raised to OIETIX regarding a particular Panel member's attention during the hearing, which was conveyed to me. An immediate break was taken to address the matter directly with that Panel member, who confirmed that they were actively paying attention to the hearing.

On May 16, 2025, OIETIX received from [redacted] attorney-advisor "a request for a new Hearing Panel and for the hearing to restart." The basis for the request was his conjecture as to what a Hearing Panel member was doing during the hearing and an implication that this Panel member "ha[d] not adhered to [the] responsibilities [of] a Hearing Panel member" in this matter. Section 26.10 of the Procedures provides that the Hearing Chair may "declare a 'mishearing' if the process has become irreparably tainted[,]" which may include "circumstances during a hearing rendering a panelist unsuitable for the panel[.]" At this time, I have received no information that the hearing process has been tainted, let alone irreparably. Rather, when the issue was initially raised, it was addressed with the Panel members, who all confirmed their commitment to the process and thoughtful engagement with their roles therein. When it was raised a second time, it was again

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immediately and directly addressed. There has been no indication, e.g., of bias or prejudice on the part of any Hearing Panel member towards or against any party or witness, nor of the Panel members not adhering to applicable Policy and Procedures. The request is **denied**.

The hearing will continue to be conducted as promptly and as equitably as possible, consistent with the rules and expectations previously noticed and discussed. I appreciate the close attention being paid by parties and advisors to all aspects of the hearing and continue to welcome any concerns with respect to the process.

The Office of Institutional Equity and Title IX (OIETIX)

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From: Lauren Branchini
To: Jeremy Saland
Cc: [redacted] Title IX Coordinator
Subject: Re: I have a client being arrested and have to respond
Date: Tuesday, May 20, 2025 1:54:27 PM

Dear Jeremy,

Thank you for your email; it will be added to the Hearing Record.

Best,
Lauren

From: Jeremy Saland <jsaland@salandlaw.com>
Sent: Tuesday, May 20, 2025 1:52 PM
To: Lauren Branchini <lb659@cornell.edu>
Cc: [redacted]
Title IX Coordinator <titleix@cornell.edu>
Subject: RE: I have a client being arrested and have to respond

Lauren,

My request to move my positioning was rejected despite the fact that I have an exigent matter involving a client that was not expected. Without going into details, I represent a woman who is a complainant in three or four cases of larceny and contempt involving an ex, as well as two outstanding ICards against him for contempt and assault. She is being arrested for allegedly contacting him and that arrest is happening in the moment. I am dealing with the detective and arranging for her representation.

The above said, I was advised by the Hearing Chair that there was another request earlier to move another Respondent but that was denied. For the sake of consistency, my request was denied as well. While each request is not equal and I cannot speak to the reason for that denial, the remedy of either having the student advisor ask the questions or merely being able to ask question during the re-questioning opportunity are not reasonable. There is no prejudice to the complainant or process to allow the re-ordering of questioning, but there is to [redacted]. He will forego an opportunity to ask questions and only get one. The rigidity of this process is unnecessary to the detriment of the accused.

Please note my objection. Thank you.

Sincerely,

Jeremy Saland, Esq.

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